

26CHCV01654 26CHCV01654

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LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

SEPTEMBER 2026

DEMURRER WITH MOTION TO STRIKE

Los Angeles Superior Court Case

26CHCV01654

Demurrer

Filed: 6/5/26

Motion

to Strike Filed: 6/8/26

MOVING

PARTY: Defendants

Michael Meadows; and Althea Meadows (collectively, "Defendants")

RESPONDING

PARTY: Plaintiffs

Alex Alvarado; and Patricia Alvarado (collectively, "Plaintiffs")

NOTICE:

OK

RELIEF REQUESTED: Defendants demur against Plaintiffs' entire complaint and seek an order striking Plaintiffs' references to punitive damages and attorney fees from the complaint.

TENTATIVE

RULING: The demurrer is sustained with 30 days leave to amend. The motion to strike is moot.

REQUEST

FOR JUDICIAL NOTICE: Defendants' request for judicial notice is granted as to the existence, but not the contents, of Exhibits 1–5; and denied as to Exhibit 6.

BACKGROUND

This action is brought by Plaintiffs against Defendants, their next-door neighbors. (Compl. ¶¶ 1–4.) Plaintiffs allege that both properties “are bound by a Declaration of Covenants, Conditions, and Restrictions [‘CC&Rs’] for Ridgeview Saugus Homeowners Association.” (Id. at ¶ 9.) Plaintiffs allege that Defendants violated various provisions of the CC&Rs by operating a pool cleaning business out of their home, regularly letting their dog roam outside without a leash, overwatering their yards, storing trash in plain view of their home, and generating loud noise via motorcycle or dirt bike. (Id. at ¶¶ 13–33.)

On 4/24/26, Plaintiffs filed their complaint, alleging against Defendants the following causes of action: (1) Breach of Governing Documents Re: Pool Cleaning Business; (2) Breach of Governing Documents Re: Dog; (3) Breach of Governing Documents Re: Overwatering; (4) Breach of Governing Documents Re: Trash; (5) Breach of Governing Documents Re: Motorcycle; (6) Nuisance; (7) Negligence; (8) Trespass; (9) Declaratory Relief; and (10) Invasion of Privacy.

On 6/5/26, Defendants filed the instant demurrer. On 6/8/26, Defendants filed their motion to strike. On 8/31/26, Plaintiffs filed their oppositions. On 9/3/26, Defendants filed their replies.

ANALYSIS

A.

Abatement

As a general matter, a party may respond to a pleading against it by demurrer on the basis of any single or combination of eight enumerated grounds, including that “there is another action pending between the same parties on the same cause of action” and “the pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subds. (c), (e).) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

Here, Defendants

demur to Plaintiffs’ entire complaint, arguing that (1) there is a separate pending action involving the same parties and claims; (2) Plaintiffs’ claims are barred by the applicable statutes of limitations; (3) Plaintiffs fail to allege facts sufficient to constitute any of their causes of action; and (4) Plaintiffs fail to attach to their complaint a prelawsuit Alternative Dispute Resolution certificate as required by Civil Code section 5950.

“A plea in abatement

pursuant to section 430.10, subdivision (c), may be made by demurrer or answer when there is another action pending between the same parties on the same cause of action.” (Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 787.) Here, Defendants argue that abatement of the instant action is proper because Plaintiffs have brought the same causes of action against them in Alvarado et al. v. Meadows et al., Los Angeles Superior Court Case No. 20CHCV00648 [“Alvarado v. Meadows I”]. “On 2/27/26, the Honorable Bernie C. La Forteza dismissed with prejudice the Alvarados['] action on their First Amended Complaint against the Meadows in Alvarados v. Meadows I based on the Alvarados['] failure to bring their action to trial within five years. ... On 3/30/26, the Alvarados filed a Notice of Appeal of the Dismissal Order in Alvarados v. Meadows I. ... That appeal remains pending in the California Court of Appeal, Second Appellate District, Appeal #B354370.” (Dem. 13:1–6, citing Exs. 4 and 5 to RJN.)

Plaintiffs’

complaint in *Alvarado v. Meadows I* includes, inter alia, the following causes of action against Defendants: Breach of Governing Documents Re: Pool Cleaning Business; Breach of Governing Documents Re: Dog; Breach of Governing Documents Re: Overwatering; Breach of Governing Documents Re: Trash; Breach of Governing Documents Re: Motorcycle; Nuisance; Negligence; Trespass; and Declaratory Relief. (Ex. 2 to RJN.)

In opposition, Plaintiffs contend that the claims in the instant action are distinct from those alleged in *Alvarado v. Meadows I* because “this lawsuit seeks relief for harms that Plaintiffs Alex and Patricia Alvarado suffered due to conduct Defendants Althea and Michael Meadows engaged in after February 27, 2026.” (Dem. Opp. 4:3–5.) Plaintiffs further argue that “when the harms are distinct—such as when they arise from separate occurrences on separate dates—the primary rights are distinct, and the causes of action are not the same.” (Id. at 6:25–27, citing *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 577.)

However, as Defendants note in reply, “the Alvarados’ Complaint here does not include any allegation of any conduct by the Meadows which occurred after February 27, 2026.” (Dem. Reply 8:3–4 [emphasis in original].) The Court finds that here, Plaintiffs do not specify any distinct time period or alleged misconduct from their claims in *Alvarado v. Meadows I*. Based on the foregoing, the Court sustains Defendants’ demurrer to Plaintiffs’ entire complaint pursuant to Code of Civil Procedure section 430.10, subdivision (c).

The Court notes the parties’ remaining arguments relating to statutes of limitation, factual sufficiency, and Civil Code section 5950, but declines to reach them at this juncture.

B.
Leave to Amend

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; *Lewis v. YouTube, LLC*

(2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Here, the Court notes that this is the first demurrer with motion to strike heard against Plaintiffs’ complaint, and further notes that Plaintiffs seek leave to amend to the extent necessary. Therefore, under the Court’s liberal policy of granting leave to amend, Plaintiffs are granted 30 days leave to amend the complaint to cure the defects set forth above

C.

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Here, Defendants seek to strike Plaintiffs’ references to punitive damages and attorney fees from the complaint. As the Court sustains the demurrer with leave to amend, the motion to strike is therefore moot. (B. F. G. Builders v. Weisner & Coover Co. (1962) 206 Cal.App.2d 752, 758–759 [it is proper procedure for the Court to sustain a demurrer with leave to amend and remove an accompanying motion to strike from the Court’s calendar].

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CONCLUSION

The demurrer is sustained with 30 days leave to amend. The motion to strike is moot.